

**BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS**

STATE OF COLORADO

Case No. 2008-001491

STIPULATION AND FINAL AGENCY ORDER

**IN THE MATTER OF THE APPLICATION FOR A LICENSE TO PRACTICE
PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF CARL
RUDOLPH NASSAR**

Applicant.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners (the "Board") and Carl Rudolph Nassar, ("Applicant") as follows:

1. Applicant applied for licensure to practice as a professional counselor in the State of Colorado on or about August 22, 2007.
2. The Board has jurisdiction over Applicant and the subject matter of this Stipulation and Final Agency Order ("Order").
3. It is the intent of the parties and the purpose of this Order to provide for settlement of all matters arising out of case number 2008-001491, Applicant's application for licensure as a professional counselor in the state of Colorado. This Order is a full and final resolution of Respondent's application for a license to practice professional counseling. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Applicant, as of the effective date of this Order.
4. Applicant admits the following:
 - a. Applicant applied for a license to practice professional counseling on or about August 22, 2007. At the time the Board considered his application, Applicant had a case pending before the State Grievance Board that arose from his practice of psychotherapy as an unlicensed psychotherapist. Applicant's practice of psychotherapy as an unlicensed psychotherapist also was the supervised practice necessary for licensure as a licensed professional counselor.
 - b. During Applicant's supervised practice as an unlicensed psychotherapist he entered into a professional and therapeutic relationship with a client with the initials C.V.B., to provide psychotherapy as defined in § 12-43-201(9).

c. During their second therapy of individual counseling, Applicant inappropriately disclosed information of a sexual nature to C.V.B. and thereby acted or failed to act in a manner that does not meet the generally accepted standards of practice.

5. By virtue of the facts admitted in paragraph 4 above, Applicant admits and the Board finds that the above conduct is a violation of C.R.S. §12-43-222(1)(g).
6. By virtue of the admissions contained in paragraph 4, Applicant specifically agrees to receive a license to practice professional counseling subject to the terms and conditions outlined below. Applicant further agrees that the Board is authorized by §§12-43-212 and 12-43-224(3)(c), C.R.S., to grant Applicant a license. The Board is authorized to impose probation with conditions pursuant to §12-43-224(3)(c), C.R.S. Applicant consents to the following limitations to his license within the meaning of §24-4-104(11), C.R.S. Applicant acknowledges that by accepting this license in lieu of a formal hearing, Applicant waives all remedies outlined in §§12-43-212 and 24-4-104(9), C.R.S.

PROBATION

7. Applicant's license to practice professional counseling in the State of Colorado is hereby placed on probation for two years commencing from the effective date of this Order or the date Applicant's clinical supervisor is approved, whichever date is later. During the probationary period, Applicant shall be bound by the terms and restrictions set forth in this Order.
8. The period of probation is tolled during any time that Applicant is not practicing in the State of Colorado, and such period of probation shall resume at such time as Applicant resumes practicing in the State of Colorado in accordance with this Order.
9. Credit toward the period of probation will be given only for the period of time during which Applicant is practicing as a professional counselor in Colorado, is being monitored by a clinical supervisor, and is in full compliance with all terms of this Order.
10. If, at the end of the probationary period, Applicant has adhered to all terms and conditions of this Order, Applicant may request termination of probation. Request for termination of probation must be made in writing to the Board, and Applicant is responsible for establishing, to the satisfaction of the Board, that he has satisfied all terms and conditions of probation.
11. Respondent is and has been practicing as an unlicensed psychotherapist, subject to the jurisdiction of the Grievance Board. He is entering into a Stipulation and Final Agency Order with the Grievance Board that contains the same terms of probation as this Stipulation and Final Agency Order. Respondent will be practicing as a licensed professional counselor once he has an approved clinical supervisor. For that reason the Board will handle all the duties and responsibilities of administering the probation required by both Stipulation and Final Agency Orders. Any action taken by the Board relating to Respondent's probation will be reported to the Grievance Board.

CLINICAL SUPERVISOR

12. During the term of probation, Applicant's practice shall be monitored by a clinical supervisor. Prior to beginning practice as a licensed professional counselor in Colorado, but no later than 30 days after the effective date of this Order, Applicant shall submit, in writing, three proposed clinical supervisors for the Board's approval. Applicant shall include a program-approved practice monitor application from each potential clinical supervisor, with attached curriculum vita or resume. The clinical supervisor shall meet the following criteria:
 - a. The clinical supervisor shall be a licensed, certified, or listed, mental health provider who is currently practicing in the State of Colorado; and
 - b. It is recommended that the clinical supervisor have a minimum of five years of experience and has not been subject to professional discipline; and
 - c. The clinical supervisor shall have no current or past financial or personal interest in Applicant or Applicant's practice. Former employees and business associates fall under this provision.
13. After the Board's written approval of a clinical supervisor, Applicant and the approved clinical supervisor shall enter into a written contract for clinical supervision. Applicant shall not begin practice in Colorado as a licensed professional counselor until such time as the Board approves a clinical supervisor, and Applicant and the clinical supervisor have entered into a written contract for clinical supervision.
14. The clinical supervisor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the clinical supervisor has received a copy of this Order, the application and responsive documents, any investigative report, and any prior practice evaluation(s); has read these documents; and understands the duties and responsibilities s/he is undertaking as Applicant's clinical supervisor. The clinical supervisor shall ensure that a written notification is provided to each of Applicant's clients, informing the clients of the name, address, and telephone number of the clinical supervisor. This written notification may be provided in a mandatory disclosure statement.
15. The clinical supervisor shall conduct a practice evaluation during the first month of clinical supervision. The clinical supervisor shall examine all aspects of Applicant's practice or proposed practice, his qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether he has the necessary qualifications, current ability, and competence to practice. The first clinical supervision report shall include the findings of the practice evaluation.
16. Should the Board determine from the clinical supervisor's evaluation that Applicant cannot practice any part of his practice with skill and safety for clients in accordance with generally accepted standards of practice and/or does not have the appropriate qualifications, ability or

competence for practice, Applicant shall immediately cease any part of the practice that the Board determines, based on the evaluation, he is not qualified, competent, and/or safe to conduct. Based on the Board's findings and the evaluation, the Board will determine necessary actions that Applicant must take and conditions Applicant must meet so that Applicant can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Board finds Applicant is not qualified, competent, and/or safe to practice. Once Applicant satisfies the Board that he is qualified, competent, and/or safe to fully practice, Applicant may resume full practice.

17. The clinical supervision shall consist of individual, in-person (face-to-face) sessions that occur once a week for at least one hour, or such longer time as the clinical supervisor deems necessary. During the clinical supervision sessions, Applicant and his clinical supervisor must review and discuss each of Applicant's active cases at least once every month in order to allow the clinical supervisor to be able to determine whether Applicant is practicing licensed professional counseling in accordance with generally accepted standards of practice and with skill and safety for his clients.
18. The clinical supervisor shall submit written reports to the Board on the fifth day of the month following the first full month of clinical supervision. All subsequent reports shall be submitted on the fifth day of each month for the first 12 reports. After the submission of the first 12 reports, unless otherwise ordered by the Board, the clinical supervisor shall submit his/her reports by the fifth day of every third month (i.e., on a quarterly basis) until the clinical supervision is completed.
19. If at any time the Board has questions or concerns regarding the clinical supervision, the clinical supervisor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the clinical supervisor 30 days notice prior to requiring the clinical supervisor's attendance at the Board meeting.
20. If at any time the clinical supervisor believes that Applicant is not in compliance with this Order, is unable to practice with skill and safety to his clients, and/or has committed a violation of the practice act or rules and regulations, the clinical supervisor shall immediately notify the Board, in writing, and include the basis for this conclusion. A copy will be sent to Applicant. Upon submission of such a report, Applicant shall immediately cease the practice of professional counseling.
21. Applicant shall make every effort to ensure that all reports by the clinical supervisor are complete and timely submitted to the Board. If, in the Board's judgment, the clinical supervisor fails to perform the function specified by this Order, the Board may require that a new clinical supervisor assume the responsibilities herein. If for any reason the clinical supervisor ceases to perform the functions specified in this Order, Applicant shall submit, in writing, a new proposed clinical supervisor to the Board within 30 days.
22. Applicant or the clinical supervisor may terminate the monitoring relationship upon written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Applicant shall immediately initiate efforts to obtain another Board-approved clinical supervisor, who shall conduct his/her monitoring and report to the Board in accordance with this Order.

CONTINUING EDUCATION

23. During the period of probation, Applicant must successfully complete at least 20 hours each year of Board-approved professional continuing education courses in the areas of Post Traumatic Stress Disorder, Ethics, Borderline Personality Disorder, Transference/Counter transference, assessments and boundaries. Applicant shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, the provider is to mail to the Board a certificate of completion.

TERMS AND CONDITIONS

24. Applicant will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that he does not engage in any activities that are prohibited and that he practices in accordance with the generally accepted standards of practice.
25. Applicant shall not supervise or consult with other mental health providers for the purpose of those persons providing licensed professional counseling, unless such supervision or consultation is monitored in accordance with this Order.
26. All expenses incurred or associated with the practice evaluation, clinical supervision, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Applicant and not the Board.
27. During the pendency of this Order, Applicant agrees that he will provide permission to and allow his clinical supervisor to provide records and information obtained in the normal course of clinical supervision to the Board if the clinical supervisor determines that Applicant is not practicing licensed professional counseling in accordance with generally accepted standards of practice and/or has a condition that renders him unable to treat clients with skill and safety or that may endanger the health or safety of persons under his care. As part of this Order, Applicant explicitly waives his right to maintain confidentiality of records or information provided to the clinical supervisor in the normal course of clinical supervision if the clinical supervisor determines that he is not practicing licensed professional counseling in accordance with generally accepted standards of practice and/or has a condition that renders him unable to treat clients with skill and safety or that may endanger the health or safety of persons under his care.
28. In the event Applicant relocates at any time during the probationary period, Applicant shall notify the Board of the change of address within 30 days of the effective date of such change.
29. Applicant is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §§12-43-212 and 24-4-104(9), C.R.S., and hereby waives those rights. Further, Applicant also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

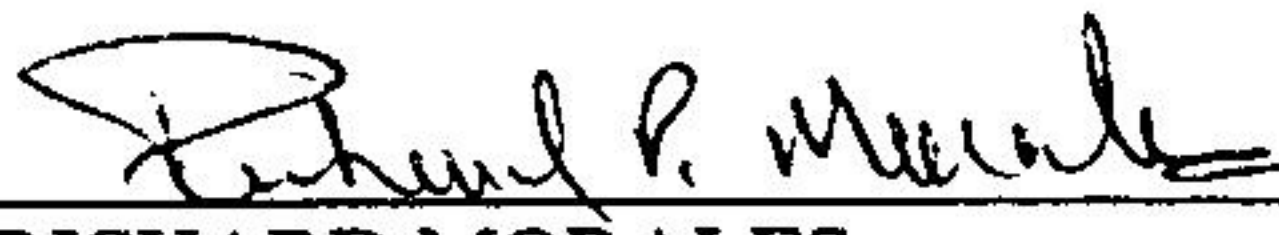
30. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.
31. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal hearing pursuant to §§12-43-212, 12-43-224, and 24-4-104(9), C.R.S.
32. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Applicant to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.
33. Applicant shall obey all state and federal laws while this Order is in effect.
34. This Order constitutes the entire agreement between Applicant and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.
35. This Order shall become effective when accepted and signed on behalf of the Board.
36. This Order shall be admissible as evidence at any hearing held before the Board.
37. This Order shall be a public record in the custody of the Board.

APPLICANT


CARL RUDOLPH NASSAR

Dated: 3/20/08

**COLORADO STATE BOARD OF
LICENSED PROFESSIONAL
COUNSELOR EXAMINERS**

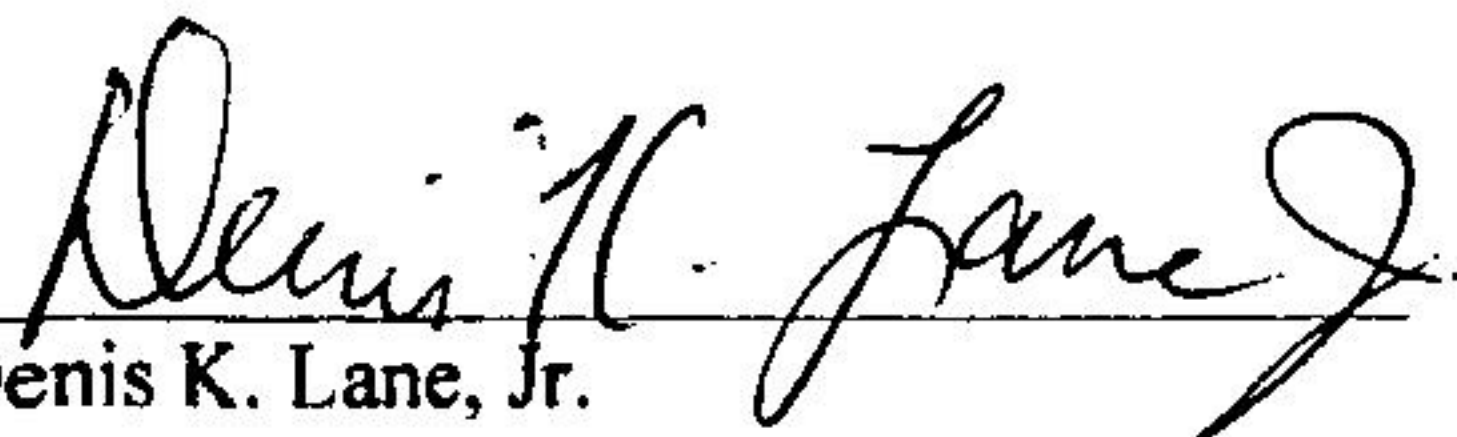

RICHARD MORALES
Program Director

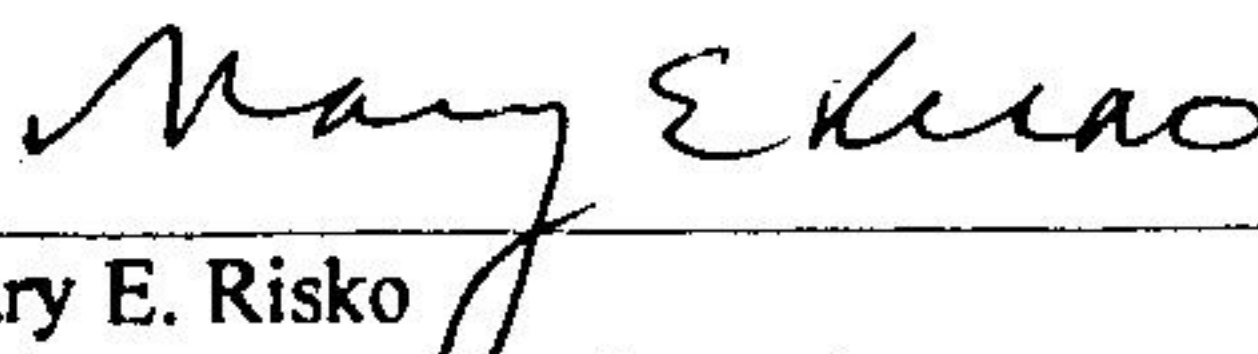
Effective Date: This 10 day of
April 2008.

APPROVED AS TO FORM:

FOR THE APPLICANT

FOR THE BOARD


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